

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Murray	Team: Team # 3	CCRB Case #: 201010188	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 07/26/2010 4:10 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/26/2012	Precinct: 94
Date/Time CV Reported Mon, 07/26/2010 5:45 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 07/26/2010 9:43 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Gregory Smith	14747	940747	094 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Gregory Smith	Discourtesy: PO Gregory Smith spoke obscenely to § 87(2)(b)	A . Complaint Withdrawn

Case Summary

On July 26, 2010, § 87(2)(b) filed the following complaint with the CCRB via the online website. On July 26, 2010, at approximately 4:10 p.m., § 87(2)(b) witnessed a vehicle almost hit a mother and her two children on the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) called 911 and requested police assistance. Two uniformed officers in RMP #1209 responded. PO1 was described as a 5'5" to 5'6", white male with a shaved face and PO2 was a black female. § 87(2)(b) attests that PO1's last name was "Smith." § 87(2)(b) approached PO1, and he allegedly stated to § 87(2)(b) "Who the fuck are you?" During their interaction, PO1 used the expletive "fuck" three times. A CTS search revealed that there is only one officer assigned to 94th precinct with the name "Smith" that matches § 87(2)(b)'s general description, and was identified as PO Gregory Smith. § 87(2)(g)

On July 30, 2010, § 87(2)(b) was contacted and mediation was presented to him as a possible resolution. § 87(2)(b) called back on the same date and withdrew his complaint. § 87(2)(b) was not coerced by anyone at the CCRB or NYPD to withdraw his complaint, and he chose to do so voluntarily. On August 2, 2010, a withdrawal letter was sent to § 87(2)(b)'s home address. It will be added to the case file upon its return to the CCRB. Assistant Supervising Investigator Rita Bobe-Saleh reviewed the withdrawal statement and confirmed that it adhered to agency standards. Based upon § 87(2)(b)'s request, it is recommended that the allegation be closed as *complaint withdrawn*.

Team: _____

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Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____